

The Companies (Fees on Applications) Rules, 1999

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Union of India - Act

The Companies (Fees on Applications) Rules, 1999

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The Companies (Fees on Applications) Rules, 1999

Rule THE-COMPANIES-FEES-ON-APPLICATIONS-RULES-1999 of 1999

Published on 6 July 1999

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The Companies (Fees on Applications) Rules, 1999

Published vide Notification No. G.S.R. 501(E), dated 6th July, 1999

Ministry of Law, Justice and Company Affairs

(Department of Company Affairs)

G.S.R. 501(E). - In exercise of the powers conferred by sub-section (1) of Section 642, read with sub-section (2) of section 637A, of the Companies Act, 1956 (1 of 1956), and in supersession of the Companies (Fees on Applications) Rules, 1968, the Central Government hereby makes the following rules, namely:

1.

Short title.

(1)

These Rules may be called the Companies (Fees on Applications) Rules, 1999.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Fees.

(1)

Every application made to the Central Government in respect of a company proposed to be registered pursuant to a licence under section 25 of the Companies Act, 1956, or by a company, (including a foreign company as defined in section 591 of the said Act), under any provision (other than sub-section (1-D) of section 108 or clause (b) of sub-section (7) of section 555) of the said Act, shall be accompanied by the fee specified in the Table below, namely:-

Table-I

For Applications made

Amount of fees to be paid (Rs.)

(i)

By a company having an authorised share capital of:-

(a) Less than Rs.25,00,000/-

500

(b) Rs.25,00,000 or more but less than Rs.5 crores

1,000

(c) Rs.5 crores or more

2,000

(ii)

By a company limited by guarantee but not having a share capital.

500

(iii)

By an Association or proposed company for issue of licence u/s 25 of the Act

500

(iv)

By a company having a valid licence issued u/s 25 of the Act.

500

(v)

By a foreign company

1,000

(2)

Every application made to the Central Government under sub-section (1-D) of section 108 of the said Act shall be accompanied by the fee specified in the Table below, namely:-

Table-II

Where the face value of the shares involved in a transfer

Amount of fees to be paid (Rs.)

(a) Does not exceed Rs.5,000

50

(b) Exceeds Rs.5,000

100

(3)

Every application made to the Central Government under clause (b) of sub-section (7) of section 555 of the said Act shall be accompanied by the appropriate fee specified in the Table below:-

Table-III

Application for payment from the Companies' Liquidation

Account

Amount of fees to be paid (Rs.)

(a)

When the amount of claim does not exceed Rs.5,000/-

NIL

(b)

When the amount of claim exceeds Rs.5,000 but does not exceed
Rs.10,000/-

200

(c)

When the amount of claim exceed Rs.10,000

300

Note:- The Companies (Fees on Application) Rules, 1968 were issued Vide Notification No. GSR 1485 dated 5-8-1968 and subsequently amended vide:

(1)

GSR 259(E) dated 24-4-1972

(2)

GSR 783(E) dated 13-7-1988

(3)

GSR 126(E) dated 25-2-1992

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